

22STCV04061 22STCV04061

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-06-29

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Case Number: 22STCV04061 Hearing Date: June 29, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MONTANO

INVESTMENTS, INC.,

Plaintiff,

vs.

USA

REAL ESTATE INVESTMENT SERVICES, INC., et al.

Defendants

Case No.:

22STCV04061

Hearing

Date:

June 29, 2026

[TENTATIVE]

ORDER DENYING MOTION TO COMPEL

DEPOSITION OF NON-PARTY SOCORRO MONCILBAIS

I. BACKGROUND

Plaintiff Montano

Investments, Inc. ("Plaintiff") filed this action against twelve Defendants arising from an alleged scheme to defraud Plaintiff out of real property through a fraudulent promissory note, bad faith foreclosure and stonewalling of legitimate sales. Plaintiff alleges 11 causes of action stemming from these alleged fraudulent and bad faith dealings.

This action has been consolidated with two other actions concerning a related property. (Case Nos. 22STUD00250 and 22STUD00257.)

On February 11, 2026, Plaintiff filed this instant motion to compel the deposition of non-party witness Socorro Moncilbais ("Deponent") and for sanctions against Defendant USA Real Estate, Inc. ("USA") totaling \$1,819.00.

On June 2, 2026, the Court continued the motion to allow USA to file and serve the Declaration of Fabian Navejas and be able to rule on the merits.

On June 5, 2026, USA filed the Declaration of Fabian Navejas pursuant to the minute order.

II. LEGAL STANDARD

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent's attendance and testimony, and the production . . . of any document . . . described in the deposition notice." (Code Civ. Proc., § 2025.450, subd.

(a.)

The

motion must set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (Code Civ. Proc., § 2025.450, subd. (b)(1).) The motion must also contain a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b)(2).)

If a motion is granted, the court shall impose a monetary sanction in favor of that party unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the sanction unjust. (Code Civ. Proc. § 2025.450 (g).)

A

party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc., § 2020.010.) A deposition subpoena may command the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. (Code Civ. Proc., § 2020.020.) The Court may order a third party to comply with a deposition subpoena upon any terms or condition as the court shall declare. (Code Civ. Proc., § 1987.1.)

California

Rules of Court rule 3.1346 states "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record."

III. DISCUSSION

Plaintiff

requests the Court order Deponent appear and testify at a deposition pursuant to Code Civ. Proc., § 2025.450, subd. (a). (Mot. Pg. 3 ¶¶ 5-6.) On November 21, 2025, Plaintiff served a deposition notice for Deponent on USA. USA served a timely objection to the deposition, providing numerous objections and stating Deponent is no longer employed by any defendant. (Mot., Delman Decl. ¶ 3, Ex.

B.) Deponent did not appear at the deposition. (Mot. Pg. 4 ¶¶6-7.) Plaintiff argues Deponent was still listed as a principal of Defendants pursuant to a 2023 document, therefore substituted notice effectuated on USA was proper. (Mot., Delman Decl. ¶ 5, Ex. D.)

USA

asserts Deponent is not currently an employee or agent of USA. (Navejas Decl., ¶¶ 4-5.) USA argues that Deponent is not required to respond because Plaintiff served a deposition notice on a non-party, former officer, without serving the non-party with a subpoena or proper notice of the deposition. (Opp. Pg. 4 ¶¶ 21-23.)

USA

provides evidence stating that Deponent has not been an officer, director, managing agent, or employee of USA since January 14, 2024. (Navejas Decl., ¶ 5.) A non-party to an action can only be compelled to respond to a deposition if issued a deposition subpoena. (Code Civ. Proc., § 2020.010.) USA argues that Deponent was not served with a deposition subpoena. (Navejas Decl., ¶ 9.) Plaintiff relied on information from the California of State Statement of Information on USA to effectuate substituted service on Deponent, however the report is dated February 1, 2023, which is prior to Deponent's departure from USA. (Navejas Decl., ¶¶ 14-15.) This information is outdated, since Deponent left USA in 2024. (Navejas Decl., ¶ 4.) Moreover, at the time notice of deposition was served on USA's counsel, Deponent was not associated with USA. (Navejas Decl., ¶ 15.) Plaintiff cannot compel Deponent to respond to the notice of deposition absent subpoena and thus, the motion must be denied. As a result, Plaintiff's request for sanctions against USA is also denied.

IV. CONCLUSION

Plaintiff

Montano Investments, Inc.'s motion to compel the deposition of deponent Socorro Moncilbais is therefore DENIED. Plaintiff Montano Investments, Inc.'s request for sanctions is DENIED.

Plaintiff is ordered to give notice.

DATED:

June 29, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the

parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.